

24STCV17998 24STCV17998

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 24STCV17998 Hearing Date: July 31, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

31, 2026 TRIAL

DATE: September 7, 2027

CASE: Madhusudan Thapa Magar v. Dhurba Dhakal, et al.

CASE NO.: 24STCV17998

DEFENDANTS' MOTION TO COMPEL PLAINTIFF MADHUSUDAN

THAPA MAGAR TO PROVIDE RESPONSES TO FORM INTERROGATORIES (SET ONE),

SPECIAL INTERROGATORIES (SET ONE), AND

REQUEST FOR PRODUCTION OF DOCUMENTS (SET ONE) AND; REQUEST FOR MONETARY

SANCTIONS

MOVING PARTY: Defendants Dhurba Shakal and Rajendra Singh

Thakuri

RESPONDING PARTY: Plaintiff Madhusudan Thapa Magar

I. INTRODUCTION

On March 11, 2026, Defendants, Dhurba Shakal

and Rajendra Singh Thakuri, filed this motion to compel Plaintiff, Madhusudan

Thapa Magar, to provide initial responses to Defendants' first set of Form Interrogatories, Special Interrogatories, and Request for Production of Documents. Defendants request sanctions against Plaintiff.

On July 21, 2026, Plaintiff filed oppositions.[1]

On July 24, 2026, Defendants filed a reply.[2]

As indicated in Plaintiff's oppositions, this motion is largely moot. Plaintiff served verified responses without objections to Defendants' discovery requests during the pendency of the motion. (See Ikonte Decl., Ex. A.) The court finds these discovery responses substantially comply with the Code of Civil Procedure. The court proceeds to consider Defendants' request for sanctions only.

II. DISCUSSION

Plaintiff argues sanctions are not warranted because the failure to provide timely discovery responses was the result of personal tragedies.

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for "misuse of the discovery process," which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court "shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).)

Here, Plaintiff's counsel states that he lost his uncle and father within 15 days. For this reason, Plaintiff's counsel did not notice that Defendants served discovery requests until Defendants filed this motion. (Ikonte Decl., ¶¶ 2-7.) Given this background and Plaintiff's service of substantially compliant discovery responses, the court finds the imposition of sanctions would be unjust. The court declines to impose sanctions at this time.

III. CONCLUSION

The motions are Moot.

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¿ Defendants' request for sanctions is DENIED.¿

Plaintiff is ordered to give notice, unless waived.

Dated: July 31, 2026

Brock T. Hammond

Judge of the Superior Court

[1] Plaintiff filed two oppositions. One of the filings opposes a motion to deem admitted. Because Defendants did not file a motion to deem admitted, the court does not consider the arguments raised in that opposition. The court also notes that Plaintiff did not timely file either opposition. Notwithstanding the defect, the court considers the arguments raised in Plaintiff's relevant opposition papers. (Cal. R. Ct., rule 3.1300(d).)

[2] Because the reply concerns only a motion to deem admitted that does not appear in the notice of motion, the court does not consider the arguments raised therein.